

**FORM 3**

THE PATENTS ACT, 1970

(39 of 1970)

and

THE PATENTS RULES, 2003

**STATEMENT AND UNDERTAKING UNDER SECTION 8**

(See sub-rule (2) and (3) of Rule 12)

|                                                          |                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                           |                     |                  |
|----------------------------------------------------------|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|---------------------|------------------|
| 1. Name of the applicant(s).                             |                     | I/We.....<br>.....<br>.....<br>.....<br><br>hereby declare:                                                                                                                                                                                                                                                                                                                                                                                        |                           |                     |                  |
| 2. Name, address and nationality of the joint applicant. |                     | (i) that I/We who have made the application for patent number ..... in India, dated ....., alone/jointly with.....,<br><br>(ii) that I/We have not made any application for the same/substantially the same invention outside India<br><br>Or<br><br>(iii) that I/We have made for the same/ substantially same invention, application(s) for patent in the other countries, the particulars of which are given below:                             |                           |                     |                  |
| Name of the country                                      | Date of application | Application No.                                                                                                                                                                                                                                                                                                                                                                                                                                    | Status of the application | Date of publication | Date of disposal |
|                                                          |                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                           |                     |                  |
|                                                          |                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                           |                     |                  |
| 3. Name and address of the assignee                      |                     | (i) that the rights in the application(s) filed in India has/have been assigned to .....<br>.....<br>.....<br><br>(ii) that I/We undertake that upto the date of grant of the patent by the Controller, I/We would keep him informed in writing regarding the details of corresponding applications for patents filed outside India in accordance with the provisions contained in section 8 and rule 12.<br><br>Dated this.....day of.....20..... |                           |                     |                  |

|                                                                             |                                                                                      |
|-----------------------------------------------------------------------------|--------------------------------------------------------------------------------------|
| 4. To be signed by the applicant or his authorized registered patent agent. | Signature. ....                                                                      |
| 5. Name of the natural person who has signed.                               | (.....<br>.....)                                                                     |
|                                                                             | To<br><br>The Controller of<br><br>Patents, The Patent<br><br>Office,<br><br>at..... |
| Note. - Strike out whichever is not applicable.                             |                                                                                      |